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| CASE #      | CASE NAME                    | HEARING NAME                                                                                                 |
|-------------|------------------------------|--------------------------------------------------------------------------------------------------------------|
| CVME2508525 | DOE A.G. VS COUNTY OF ORANGE | MOTION TO QUASH PLAINTIFF'S DOCUMENT SUBPOENA TO THE CUSTODIAN OF RECORDS FOR THE DISTRICT ATTORNEY'S OFFICE |

**Tentative Ruling:** See above.

4.

| CASE #      | CASE NAME          | HEARING NAME                         |
|-------------|--------------------|--------------------------------------|
| CVSW2108099 | PELAYO VS STIRLING | MOTION FOR JUDGMENT ON THE PLEADINGS |

**Tentative Ruling:** DENY

Plaintiff Letitia Pelayo acquired ownership of the residential property located at 45251 La Cruz Drive, Temecula, CA in March 2021. The property is in the De Luz Ranchos Association. The Association has governing documents including CC&Rs which ban nuisances and Rules & Regulations that expressly ban short-term rentals (less than 30 days). When Pelayo moved into the residence, the closest home to her property was owned by Heather Stirling and is located at 44240 La Cruz Drive, Temecula. After this action was filed Stirling transferred the property to Santos Ranch Holdings LLC.

Plaintiff alleges that Defendants Dawn & Luciano Santos have been operating a short-term rental out of the Stirling property that Plaintiff characterizes as a "party house." Pelayo complained directly to Defendant Dawn Santos and then to the Association, but this did not abate the nuisance activity. Pelayo then hired counsel who sent a cease-and-desist letter and a Request for Resolution under Civil Code §§5930, 5935, and 5940, which is required before commencing an action concerning a common interest development. Receiving no response, Pelayo filed the instant lawsuit on September 22, 2021.

On December 9, 2021, Defendants Dawn Santos and Luc Santos filed a cross-complaint alleging various causes of action, including various citations to the Penal Code. The cross-complaint alleges claims of stalking, extortion, vexatious litigant, and filing false and misleading claims. The cross-complaint seeks an award of damages totaling \$1,460,000 and to have Pelayo incarcerated and deported.

On February 2, 2022, Pelayo filed a Special Motion to Strike the cross-complaint under CCP §425.16. On March 8, 2022, the anti-SLAPP motion was granted as to the entirety of the cross-complaint on the basis that the gravamen of the claims made therein arise from Pelayo's constitutionally protected activity.

Defendants and Cross-Complainants filed a First Amended Cross-Complaint (FACC) on March 12, 2024, alleging twelve (12) causes of action.

Cross-Defendant Dawn Santos brings the instant motion for judgment on the pleadings against Cross-Complainant Leticia Pelayo "because the Cross-Complaint fails to state sufficient facts to constitute a cause of action as a matter of law." (Motion p.4:6-7.) Santos